

In “War of Words: Critical Race Theory and the First Amendment,” H. L. Gates Jr. offers multiple objections to the arguments given by Charles Lawrence. Here, I will focus on Lawrence’s claim that “our constitution already commits us to some form of regulation of racist speech” (*IHHLHG*, 58) – which he shows by providing an interpretation of *Brown* with a focus on white supremacy. From there he concludes that “the non-speech elements [actions] are by-products of the main message [speech], rather than the message being simply a by-product of unlawful conduct” (*IHHLHG*, 60). I will first explicate Lawrence’s argument to give a better understanding of why he makes this claim; and then I will explain and expand upon the objection given by Gates.

Lawrence’s interpretation of *Brown* is as follows: “this interpretation is useful even for those who believe the censorship of any expression cannot ultimately be condoned: *Brown* can help us better understand the injury of racist hate speech, and understanding that is vital to our discussion” (*IHHLHG*, 58). Lawrence believes that, “the practice of segregation” manifested through speech, and it was this practice that “the Court held inherently unconstitutional” (*IHHLHG*, 59). Some believe Lawrence’s claim to be incorrect, holding on to the view that speech was not the intended focus of *Brown*, but rather aimed at “discriminatory conduct” (60), and from it resulted “the defamatory message conveyed by segregation” (60). Yet, Lawrence is convinced that it is the other way around. Lawrence then provides more insight to support his claim, stating, “my suggestion that *racist* conduct amounts to speech is premised upon a unique characteristic of racism – namely its reliance on the defamatory message of white supremacy to achieve its injurious purpose” (*IHHLHG*, 60).

Now, Gates seems to understand where Lawrence is coming from, though he doesn’t agree with him. Gates objects to Lawrence’s claim, specifically where Lawrence states that

“discriminatory conduct is not racist unless it also conveys the message of white supremacy” (54). Gates believes that this “commits Lawrence to the view that where discriminatory conduct is concerned, the only crime is to get caught” (54). This may seem a bit generalized. However Gates offers an objection through analogy. He says that “by this logic, racial redlining by bankers isn’t racist unless people find out about it” (*WOW: CRTFA*, 54) Or perhaps, another counter argument: *what about the individual that performs what would be regarded as ‘an act of racism towards another’ yet neither person is white?* Does this mean, according to Lawrence, that the offered counter example shows no act of racism, due to neither party being of white ethnicity, which (more likely than not) means they have no ties with those that claim to be white-supremacists?

When Lawrence makes the claim that “the non-speech elements are by-products of the main message” what he means is that from speech of some form, e.g., text, images, etc., actions arise, and not the other way around. Yet, Gates continues his objection to Lawrence’s argument by offering another analogy: “by this logic, poverty is really about the message of class inequality, rather than material deprivation” (*WOW: CRTFA*, 54). So, if Lawrence is in-fact correct, then we need to focus on the “main message” to understand “the non-speech elements,” attached to it. Yet it seems that the “non-speech elements” of those living in poverty, are what catch our attention, and inform us of said “main message”. Meaning, that upon observation of an impoverished community, this “main message”, let's say *Those living in poverty experience a lesser life than those not living in poverty*, is only understood after observing the “non-speech elements” (actions) that are being expressed. Yet, when it comes to an example that involves the use of “fighting words,” it seems that Lawrence would be correct in that the “main message”

does drive the “non-speech elements” (actions) that follow. So therefore, we have run into a sort of contradiction.